

24STCV04204 24STCV04204

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-04

Motion: DEFENDANT JAJ3, LLC'S NOTICE OF MOTION AND SPECIAL MOTION TO STRIKE THE COMPLAINT OF KATHERINE D. KELLER FOR MALICIOUS PROSECUTION AND VIOLATION OF THE BANE ACT PURSUANT TO CODE OF CIVIL PROCEDURE § 425.16

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Case Number: 24STCV04204 Hearing Date: August 4, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

KATHERINE KELLER,

Plaintiff,

vs.

JEANETTE ANN BISNO, an
individual; ROBERT H. BISNO, an individual; LAW OFFICE OF ROBERT H. BISNO, a
business organization, unknown form; BISNO MANAGEMENT COMPANY, LLC, a
California Limited Liability Company; BISNO DEVELOPMENT ENTERPRISE, LLC, a
California Limited Liability Company; THE BISNO FAMILY LIMITED PARTNERSHIP, a
California Limited Partnership; BISNO REAL ESTATE GROUP, LLC, a California
Limited Liability Company; and DOES 1 to 100,

Defendant(s).

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Dept. 731

August 6, 2026

8:30 A.M.

Moving Party: Defendant JAJ3, LLC

Opposing Party: Plaintiff, Katherine Keller

Notice: OK

Background Facts

(For ease of reference and to minimize confusion, the Court refers to Jeanette Ann Bisno and Robert H. Bisno by their first names. No disrespect is intended.)

a. Pleadings

Plaintiff Katherine Keller

("Plaintiff") sues Defendants Jeanette Ann Bisno ("Jeanette") and Robert H. Bisno ("Robert") (collectively, the "Bisnos"), as well as a number of companies and entities related to the Bisnos pursuant to a February 20, 2024, Complaint alleging claims of (1) Malicious Prosecution and (2) Violation of the California Bane Act.

The claims arise from allegations that, following Defendant Jeanette Ann Bisno's battery of Plaintiff on December 12, 2018—which resulted in Jeanette's arrest that same day and later criminal prosecution—Jeanette and her husband, Defendant Robert H. Bisno, undertook a series of actions intended to intimidate and harass Plaintiff. Specifically, the Complaint alleges that on December 20, 2018, Defendants filed Los Angeles Superior Court Case No. 18STCV09206 asserting claims for assault, battery, intentional infliction of emotional distress, false imprisonment, and false arrest against unnamed Doe defendants, all arising from the December 12 incident. Moreover, Robert, acting as Jeanette's attorney in her criminal battery case, received Plaintiff's name and contact information through criminal discovery and, in violation of Penal Code section 1054.2, disclosed

that information to Jeanette and the other Defendants, enabling them to amend the 18STCV09206 complaint the very next day to name Plaintiff. Defendants then engaged in a pattern of harassment, including repeated threatening calls from Robert to Plaintiff's workplace, in which he threatened to punish and financially cripple Plaintiff for participating in the criminal prosecution—prosecution that ultimately resulted in Jeanette's no-contest plea and conviction for battery. Despite the criminal conviction and Jeanette's later admission in civil discovery that Plaintiff never touched her, Defendants continued prosecuting the 18STCV09206 action against Plaintiff, causing her financial harm until a jury returned a verdict in Plaintiff's favor and judgment was entered on August 21, 2023.

The first cause of action is based on Defendants' malicious prosecution of Case No. 18STCV09206, and the second cause of action is based on Robert's unlawful disclosure of Plaintiff's information obtained from the criminal case.

b. Motion

Before the Court

Now before the Court is Defendant

Doe 2 JAJ3, LLC's opposed motion to strike alter ego allegations from the Complaint. Identical motions are set for future hearing dates for multiple Doe Defendants.

Motion to Strike

Meet and Confer

The moving papers established a

Code-compliant meet and confer process preceded the filing of this motion. (Motion, King Decl., ¶¶ 5-6; see Code Civ. Proc., § 435.5, subd. (a)(3).)

b. Preliminary

Issues - Prior Motion to Strike Denied on the Same Grounds

In her opposition, Plaintiff argues

that JAJ3's motion should be denied because co-Doe Defendant JAJ2, LLC, previously filed a motion for the same exact relief (CRS # 275601731264), which was denied by the Court on June 18, 2026.

The Court does not credit this argument. The June 18, 2026, order dealt with, in relevant part, a motion to strike filed by JAJ2, LLC, on May 27, 2026, and in no way mentions JAJ3. It is thus not in any way binding on this Court, even if it may be instructional to the Court's position on June 18, 2026, vis-à-vis the sufficiency of the Complaint's alter ego allegations.

c. Legal Standard

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (a) strike out any irrelevant, false, or improper matter inserted in any pleading; or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436, subds. (a), (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

For the purposes of a motion to strike pursuant to Sections 435 to 437 of the Code of Civil Procedure, the term “pleading” generally means a demurrer, answer, complaint, or cross-complaint, (Code Civ. Proc., § 435, subd. (a)), and an immaterial allegation or irrelevant matter in a pleading entails (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, or (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint (Code Civ. Proc., § 431.10, subds. (b)(1)-(3), (c)).

In analyzing a motion to strike, California courts “accept as true the well-pleaded allegations” in the challenged pleadings, as well as “well-pleaded allegations admitted in” the responsive “answer.” (*Atwell Island Water Dist. v. Atwell Island Water District* (2020) 45 Cal.App.5th 624, 628 (*Atwell*); *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255 [California courts “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth”].)

Discussion

After review, the Court finds in favor of Plaintiff.

i. Reverse
Veil Piercing

The Court does not credit JAJ3's argument that alter ego cannot be stated as against an LLC through a "reverse" piercing of the veil from a person to an LLC.

"Reverse veil piercing is similar to traditional veil piercing in that when the ends of justice so require, a court will disregard the separation between an individual and a business entity. [Citation.] But the two serve unique purposes and are used in different contexts. Rather than seeking to hold an individual responsible for the acts of an entity, reverse veil piercing seeks to satisfy the debt of an individual through the assets of an entity of which the individual is an insider." (*Curci Investments, LLC v. Baldwin* (2017) 14 Cal.App.5th 214, 221 ("Curci").)

The Fourth Appellate District has held that a third-party creditor cannot pierce the corporate veil to reach corporate assets in order to satisfy a shareholder's personal liability. In *Postal Instant Press, Inc. v. Kaswa Corp.* (2008) 162 Cal.App.4th 1510, 1522-1524 ("Postal Instant Press"), the court explained that traditional veil-piercing is inappropriate in this context because the abuse of the corporate form does not exist when the judgment debtor is the shareholder; the shareholder did not incur the debt through misuse of the corporation and is not using the corporate form to escape personal liability. (See *ibid.*) Instead, outside reverse veil-piercing concerns a different problem—where a shareholder transfers personal assets to the corporation to shield those assets from collection by the shareholder's creditor. (See *ibid.*) The court noted that this type of wrongdoing can be addressed through existing judgment-collection procedures that protect creditors when innocent shareholders and creditors will not be harmed, legal remedies are inadequate, and the traditional alter-ego requirements are satisfied. (See *ibid.*) Under these procedures, a judgment creditor may enforce the judgment against the shareholder's assets, including the shareholder's corporate shares, and once the creditor acquires those shares, it obtains whatever rights the shareholder held in the corporation. (See *ibid.*)

In contrast, in *Curci*, the Fourth Appellate District held that a third-party creditor may pierce the veil of a limited liability company. (*Curci*, supra, 14 Cal.App.5th at p. 224.) Specifically, the court reasoned that the concerns underlying *Postal Instant Press*—which rejected reverse veil-piercing for corporations—do not apply in the LLC context, where: the facts in *Curci* differed because the judgment debtors were spouses who owned 100% of the LLC and who themselves owed the debt the creditor sought to collect, making the LLC simply their vehicle for shielding assets; a creditor has significantly fewer remedies against an LLC member than against a corporate shareholder insofar as a creditor can directly acquire a shareholder's stock and step into the shareholder's rights (such as voting, receiving dividends, or selling shares), but against an LLC member, a creditor may obtain only a charging order against distributions and cannot acquire any ownership interest in the LLC; and the structure of an LLC allows a judgment debtor to maintain full control over distributions, including directing payments to third parties rather than to themselves, effectively enabling the debtor to avoid personal liability by preventing any distributions that could be reached by the creditor. (See *ibid.*)

Here, under the framework of *Postal Instant Press* and *Cursi*, the Court determines that as an LLC, the reserve alter ego doctrine may be stated against JAJ3.

ii. Sufficiency of Allegations of Alter Ego

Moreover, the Court also determines that the Complaint sufficiently alleges alter ego.

Two requirements must be met to invoke the alter ego doctrine: (1) “[T]here must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist”; and (2) “there must be an inequitable result if the acts in question are treated as those of the corporation alone.” (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538 (*Sonora*).)

Here, the Complaint alleges alter ego liability against Jeanette A. Bisno, Robert H. Bisno, and the entity

Defendants. (Complaint, ¶¶ 18-23.) It asserts a unity of interest and ownership such that any separateness between the individuals and the entities had ceased to exist, and that Jeanette and Robert completely controlled, dominated, and operated the entities for their own purposes; that the Bisnos commingled funds and assets, disregarded legal formalities, failed to maintain arm's-length relationships, used a common office and employees, treated the entities as mere shells or conduits, manipulated assets and liabilities among the entities, and used them to shield themselves from personal obligations; and that every action taken by Jeanette was funded by the LLCs, demonstrating that the entities' finances and her own were indistinguishable. (See *ibid.*)

Such allegations are comparable to allegations found sufficient at the pleadings stage by California courts. For example, the court of appeal has held that unity of interest is sufficiently alleged where "[the plaintiff] alleged that [the individual defendant] dominated and controlled [the entity defendant]; that a unity of interest and ownership existed between [the individual defendant] and [the entity defendant]; that [the entity defendant] was a mere shell and conduit for [the individual defendant]'s affairs; that [the entity defendant] was inadequately capitalized; that [the entity defendant] failed to abide by the formalities of corporate existence; [and] that [the individual defendant] used [the entity defendant] assets as her own ..." (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 235-236 (Rutherford); see also *First Western Bank & Trust Co. v. Bookasta* (1968) 267 Cal.App.2d 910, 915-916 (First Western) [unity of interest sufficiently pleaded through allegations that "that the individuals, especially including E. H. Bookasta, 'dominated' the affairs of the corporation; that a 'unity of interest and ownership' existed between respondent and the corporation; that the corporation is a 'mere shell and naked framework' for individual manipulations; that its income was diverted to the use of the individuals and respondent; that the corporation was, in effect, inadequately capitalized; that the corporation failed to issue stock and to abide by the formalities of corporate existence; [and] that the corporation is and has been insolvent ..."].)

Moreover, the harms alleged in the Complaint also provide a sufficient basis to determine that the Complaint contemplates injustice if alter ego liability is not applied here, e.g., by alleging that Defendants' conduct in the plural consciously disregarded Plaintiff's rights and subjected Plaintiff to cruel and unjust hardship. (See, e.g., Complaint, ¶ 117 [allegation in punitive damages context]; see also Shaoxing

County Huayue Import & Export v. Bhaumik (2011) 191 Cal.App.4th 1189, 1198 [Question is “whether justice and equity are best accomplished in a particular case, and fraud defeated, by disregarding the separate nature of the corporate form as to the claims in that case”].)

Last, the Court briefly notes that this Court need not agree with the reasoning of the June 18, 2026, order. (Cf. Wrightson v. Dougherty (1936) 5 Cal.2d 257, 265 [demurrer was overruled in one department, judgment on pleadings was later granted in another department].)

e. Conclusion

Accordingly, Defendant JAJ3, LLC’s demurrer is OVERRULED.

Defendant JAJ3, LLC is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party’s email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 6, 2026 _____

MARK C. KIM

Judge of the
Superior Court